Vistry

Eastern Villages Swindon (South Marston), R6 & R7

LANDSCAPE, ECOLOGY AND ARBORICULTURAL MANAGEMENT PLAN (LEAMP) – ECOLOGY INPUT

October 2024

This report and associated plans contain confidential information relating to badgers and should not be made available to members of the public.

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1.0 INTRODUCTION

1.1 This document has been produced by FPCR Environment and Design Ltd. on behalf of Vistry to provide ecological input into a Landscape, Ecology and Arboricultural Management Plan (LEAMP) prepared by IDP Landscape Ltd (August 2024). This in response to the below comments received by Swindon Borough Council on the 27th September 2024 regarding a reserved matters application (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure from S/OUT/13/1555. | Parcels R6 And R7 Land North Of A420 Swindon (S/RES/24/0947).

Summary

The information submitted is not acceptable in its current format.

The Landscape Officers comprehensive response to the scheme (x17no. points raised in their memo letter dated 3.9.24 on the planting scheme) states "…Not acceptable in its current format - subject to changes noted below…". Further to this, an additional comment regarding the LEAMP was that it; " …was more of a landscape management plan…"

The statement above stating it is not acceptable is also applicable to ecology for the reasons

outlined below.

The LEMP (IDP Ltd, August 2024 | LA5979-LEAMP-01 A)

Under Section 6.0 Management Responsibilities, for completeness, I would like to see reference again to a Suitably Qualified Ecologist (SQE) role as part of any long term management team in order to deliver, review and monitor the site against the LEAMP in respect of ecology and associated landscape planting, and that "…all landscape maintenance operations, do not conflict

with ecology operations" (7.2) as stated in 7.5

7.5 "…The Contractor will be responsible for retaining the appropriate ecologists to carry out the monitoring of proposed mitigation measures for protected species, including badgers located in the northwest corner of the site…"

However, it is not stated within the LEAMP any mitigation, enhancement or monitoring in respect of Badgers, and to that extent agree with the Landscape Officer that this document is more akin to a LMP than a LEAMP.

Under Section 3.0 ECOLOGICAL & ARBORICULTURAL POTENTIAL AND

CONSTRAINTS, this contains hardly any ecological information on potential and/or constraints. This section needs far more detail and reference. Ther is no mention on species such as, but not limited to, birds, bats, reptiles, mammals (especially Badger) in respect of mitigation or habitat enhancement features such as hibernacula, bat and bird boxes. A monitoring regime for these is also therefore also omitted. There is no reference to the ponds ecology and/or mitigation. Enhancement and monitoring.

Site Context

1.2 The Site, approximately 4.73ha in size, is located in the east of the South Marston site boundary adjacent to Old Vicarage Lane, as shown on Figure 1.

1.3 Proposals are for the development of 137 dwellings and associated infrastructure as shown in IDPL LA5979-BP-400B (IDP Group October 2024).

2.0 ECOLOGICAL RECEPTORS

2.1 The Site has been subject to ongoing ecological surveys dating back to 2002. The most recent protected species surveys (badgers, bats, birds, dormice and reptiles) were conducted by FPCR in 2022 covering the South Marston area. The results of these surveys are detailed in separate reports and have been used to inform the Site assessment and proposals.

2.2 The South Marston Site was subject to a pre-commencement Site walkover on the 28th February 2024, where changes in habitats and their potential to support protect species was assessed.

2.3 There were no significant changes to habitats and their suitability to support protected species, therefore the assessments carried out in the FLEAMP and protected species reports remain relevant.

2.4 Habitat lost as part of the development proposals, which offer varying levels of suitability to protected species, as discussed in the following sections, is shown in Figure 2.

Habitats

2.5 The area covered by the Site boundary comprises improved grassland fields bounded by hedgerows and associated seasonally wet and dry ditches and individual trees.

Fauna

Great Crested Newt

2.6 The Site is of limited potential to GCN, restricted to potential hibernation opportunities within the hedgerow bases and associated ditches. Foraging habitat is present within areas of less intensively managed grassland present along some of the hedgerow margins.

2.7 The likelihood of GCN using the low suitability habitats onsite is further reduced as part of the Site is located outside of 250m of the nearest GCN pond.

2.8 Impacts on GCN and compensation for habitat losses on-site and across the wider area will be dealt with through offsite enhancements secured by a Natural England District Level Licence. The licence (2024-00670-EPS-DLL) was issued by Natural England on the 11th June 2024. Following the receipt of the licence, all works within the Site can be undertaken without constraint. Although, it is recommended that removal of habitats suitable for GCN (e.g. hedgerows and associated ditches, scrub and trees) within 250m of GCN ponds should be supervised by an ecologist to prevent injury / killing to a protected species., in line with Natural England Best Practice Guidelines. These works should be carried out under suitable weather conditions, avoiding winter months, when GCN are likely hibernating in these locations.

2.9 Under the DLL scheme, no specific on-site enhancements are required, as these are delivered offsite. However, additional enhancements supplementing green infrastructure provision, as part of this application and the wider development, will result in additional enhancements for local amphibian populations.

Badger – Confidential (not to be released into the public domain)

2.10 The Site offers potential foraging habitats to badger *Meles meles*, comprising areas of improved grassland and hedgerows. Sett building habitats are restricted to hedgerows and associated ditches within the Site.

2.11 A pre-commencement survey carried out by FPCR on the 28th February 2024, confirmed that the one disused sett previously identified within the Site boundary was still disused.

2.12 Post development green infrastructure and enhancements, as part of the wider development, will provide badger within the local area with new foraging and sett building opportunities.

2.13 As badgers are known to be active within the local area, precautionary working measures should be implemented during construction:

- A pre-commencement badger survey should be undertaken prior to Site clearance to ascertain whether any badger setts have been established in the interim.
- Any pipes greater than 250mm in diameter will be capped if they are left open overnight, thereby preventing badgers from becoming trapped;
- Any pits or trenches will be similarly covered overnight, or left with a suitable means of escape, e.g. wooden plank; failure to do so may result in entrapment of badgers and badgers creating a temporary sett within the trench, preventing works proceeding within 30m of this area.

2.14 Should the pre-commencement identify any active setts and the development entail the loss or disturbance of the badger setts, a Licence from Natural England will need to be granted to allow this. These works can be carried out between the 1st of July and 30th of November once full planning consent has been granted.

2.15 All chemicals or materials that may harm badgers must be safely stored away from potential badger habitat and contained in such a way that they cannot be accessed or knocked over by badgers.

Birds

2.16 The hedgerow and tree habitats within the Site boundary provided nesting opportunities to a range of common and widespread species.

2.17 To avoid disturbance to breeding birds, where ground and structural vegetation is to be removed, it will be removed prior to the bird-breeding season (March to September). If this is not possible, all ground and structural vegetation will be checked prior to removal by an experienced ecologist. If active nests are found, vegetation will be left untouched until all birds have fledged. Specific advice will be provided prior to undertaking the clearance. This would be a statutory requirement due to the protection of all nesting birds and their nests under the Wildlife and Countryside Act, 1981. A suitably qualified ecologist would supervise this.

2.18 If an active bird nest is found in vegetation or other feature/habitat to be removed, the area would be retained and suitably buffered. The buffer / exclusion zone is dependent on the bird species and location it is found in and will therefore be variable. Clearance operations would recommence only when the nest is no longer in use.

2.19 Post development green infrastructure and enhancements, as part of the wider development, will provide birds within the local area with new foraging and nesting opportunities.

2.20 Bird boxes will be provided as part of the development proposals and will be proportional to the number prescribed as part of the FLEAMP.

Bats

2.21 The update walkover survey carried out in February 2024 confirmed that there are five trees with bat potential (1 high potential trees, 4 moderate potential trees) present within the Site Boundary. One tree with bat potential is to be lost as part of the development proposals.

2.22 Trees within the Site boundary and wider South Marston Application Boundary were subject to nocturnal surveys, relative to their bat roosting potential, between 9th May 2022 and 1st August 2022. During these surveys no bat roosts were recorded within trees located in the Site boundary.

2.23 Trees with bat potential within the Site boundary will be re-assessed regarding their bat roosting potential and subjected to aerial assessments in 2024/25, in line with the new bat survey guidelines. Where the trees are deemed unsafe to climb, they will be subjected to nocturnal surveys.

2.24 Should surveys identify trees or structures with suitable bat potential and confirmed bat presence, a Natural England Bat licence and bespoke mitigation will be required to remove them.

2.25 To ensure retained suitable habitats continue to provide foraging and commuting opportunities to bats post-development, sensitive lighting will need to be adhered to during the construction phase. Measures to reduce impacts will include:

- The use of directional floodlighting to avoid spill.
- Avoidance of lighting potential dispersal corridors.
- The use of the lowest intensity possible.
- All luminaires should,
    a. Lack UV elements when manufactured. Metal halide, fluorescent sources would not be used.
    b. LED luminaires should be used where possible due to their sharp cut-off, lower intensity, good colour rendition and dimming capability.
    c. A warm white spectrum (ideally <2700Kelvin) should be adopted to reduce blue light component.

2.26 The post development habitats and enhancements, as part of the wider development, will provide new foraging and roosting opportunities for a range of bat species.

2.27 Bat boxes will be provided as part of the development proposals and will be proportional to the number prescribed as part of the FLEAMP.

Riparian Mammals – Otter and Water Vole

2.28 The Site is unsuitable for water vole *Arvicola amphibius* and otter *Lutra lutra*, limited to seasonally wet heavily overshaded ditches in association with hedgerow bases. These lack aquatic vegetation, areas of permanent standing water and aquatic wildlife required by these species. Therefore, these species are not considered to pose a constraint to the development.

2.29 Post development green infrastructure and enhancements, as part of the wider development, will provide water vole and otter within the local area with new foraging and refuge opportunities.

Reptiles

2.30 The Site offers limited potential for reptiles, restricted to potential hibernation opportunities within the hedgerow bases and associated ditches and foraging habitat within the narrow less intensively managed hedgerow grassland margins. The remainder of the Site, comprising intensively managed short grassland habitats, lack the structural variation required by reptiles.

2.31 The clearance works will be undertaken during suitable weather conditions (daytime temperature 9°C or higher), outside the dormant phase, minimising risks of encountering hibernating reptiles.

2.32 Post development green infrastructure and enhancements, as part of the wider development, will provide reptiles within the local area with new foraging, basking and egg laying opportunities.

Hazel Dormouse

2.33 The Site was considered to be of limited value to dormice, restricted to the hedgerow and tree habitats within the Site.

2.34 Dormouse surveys in 2022 did not detect any evidence of occupation within the Site boundary. Therefore, this species is not considered to pose a constraint to the development.

2.35 Post development green infrastructure and enhancements, as part of the wider development, will provide dormice with new foraging and nesting opportunities, should they become established in the local area in the future.

3.0 HABITAT MEASURES

3.1 Details regarding habitat retention, protection, creation and management are provided in the Landscape, Ecology and Arboricultural Management Plan (LEAMP) prepared by IDP Landscape Ltd (August 2024).

3.2 Habitat establishment will be reviewed by a suitably qualified ecologist alongside a landscape architect to ensure that habitats are maturing in line with the management plan to ensure effective establishment, to ensure they provide the biodiversity value. Corrective action will be taken accordingly.

4.0 SUMMARY

4.1 The Site supports potential receptor sites for the species mentioned above. Further survey work to ascertain the presence / likely absence of protected species and precautionary working measures are recommended and will be undertaken prior to works commencing, in line with licences and best practice guidelines to minimise the risk of impacting species during construction.

4.2 Post development green infrastructure will provide enhancements to a range of species.

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Key

Parcels R6 & R7 Site Boundary

Wider Development Site Boundary

client
Vistry

project
Parcels R6 & R7,
Eastern Villages Swindon (South Marston)

drawing title
SITE LOCATION PLAN

scale @ A3
1:10000

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Figure 1

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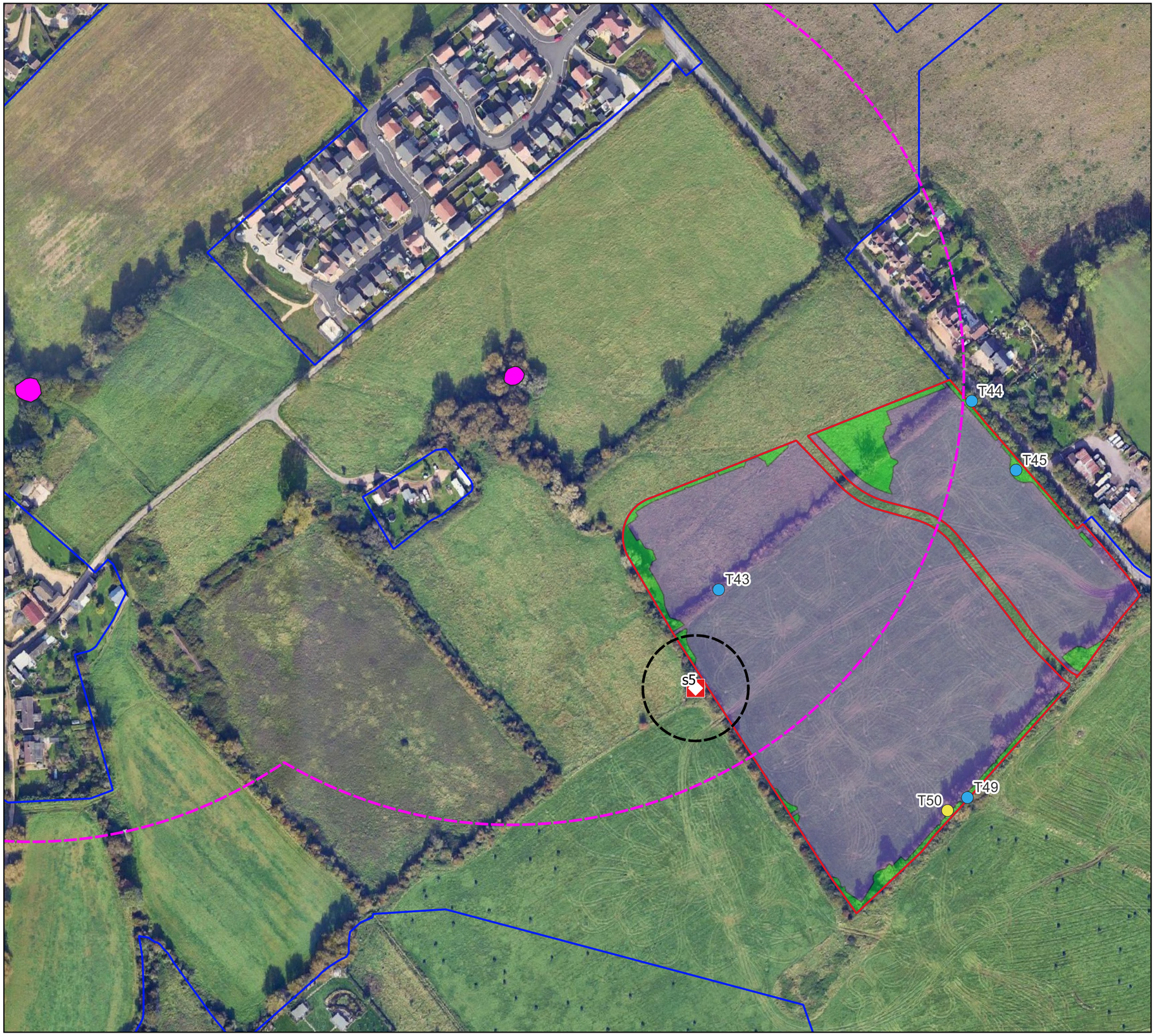

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Key

Parcels R6 & R7 Site Boundary

Wider Development Site Boundary

Habitats

Habitats Lost

Habitats Retained / Enhanced

GCN

GCN Waterbodies Near Parcels R6 & R7

250m Breeding Pond Buffer within Parcels R6 & R7

Badger

Badger Setts within Parcel R6 & R7 Site Boundary

Disused Sett

30m Disused Badger Sett Buffer witin Parcel R6 & R7 Site Boundary

The habitat loss / retention & enhancements shown on this plan are indicative and are based on the Landscape Plans. Given the scale of this plan, it should be considered in combination with the Tree Retention Plan and Landscape Plans for this Site - on which this plan is based.

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client
Vistry

project
Parcels R6 & R7,
Eastern Villages Swindon (South Marston)

drawing title
HABITAT / SPECIES RECEPTOR SITE IMPACT PLAN

scale @ A3
1:2250

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Figure 2

rev
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